

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TIA ROKER and TAMMING DAVIS,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. ANNAND
NARAYAN, P.O. "JOHN" MARINO, said first name
being fictitious and unknown at this time, and P.O.
"John" "QUILL, said first name being fictitious and
unknown at this time,

Defendants.

Index No.
Date Filed:
Plaintiff designates
KINGS County
as the place of trial

The basis of venue is
place of incident

SUMMONS

Place of Incident:
Pitkin Avenue and
Mother Gaston Blvd.
Brooklyn, NY

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or , if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within 20 days after service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Eastchester, New York
January 31, 2012

FORDE & ASSOCIATES
Attorneys for Plaintiffs

By: _____

James L. Forde, Esq.
53 Highland Avenue
Eastchester, New York 10709
(914) 771-6399

Defendants' address(es):

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. ANNAND NARAYAN
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. "JOHN" MARINO, said first name
being fictitious, the true name of the defendant
being unknown to the plaintiff, the person
intended being an employee of
THE CITY OF NEW YORK,
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. "JOHN" QUILL, said first name
being fictitious, the true name of the defendant
being unknown to the plaintiff, the person
intended being an employee of
THE CITY OF NEW YORK,
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TIA ROKER and TAMMING DAVIS,

Index No.

Plaintiffs,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. ANNAND NARAYAN,
P.O. "John" MARINO, said first name being fictitious and
unknown at this time, and P.O. "John" QUILL, said first
name being fictitious and unknown,

Defendants.

-----X
Plaintiffs, by their attorneys, FORDE & ASSOCIATES, as and for a verified complaint
herein, respectfully sets forth and alleges upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF TIA ROKER

1. That at all times hereinafter mentioned, the plaintiff TIA ROKER was and still is
a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned, the plaintiff TAMMING DAVIS was
sand still is a resident of the County of Kings, City and State of New York.
3. That at all times hereinafter mentioned, the defendant THE CITY OF NEW
YORK was and still is a municipal corporation duly organized, created and existing under and by
virtue of the laws of the State of New York.

4. That prior hereto on April 23, 2012 and within the time prescribed by law, the plaintiffs served upon the defendant THE CITY OF NEW YORK a Notice of Claim and Intention to Sue, pursuant to the provisions of the General Municipal Law, and/or the Public Authorities Law, and/or all relevant statutes.

5. That at least thirty (30) days has elapsed since the demand for claim aforesaid was presented to the defendant THE CITY OF NEW YORK for adjustment, and the defendant has neglected and/or refused to make adjustment or payment thereof. All statutory prerequisites to the commencement of this action have been complied with and this action is being commenced within one year and ninety days of the date of the occurrence.

6. That on or about the 31ST day of January, 2012, the defendant THE CITY OF NEW YORK, its servants, agents, employees and/or licensees, more specifically defendants P.O. ANNAND NARAYAN, P.O. "John" MARINO (the complete and full name being unknown at this time) and P.O. "JOHN" QUILL (the complete and full name being unknown at this time), accused the plaintiff TIA ROKER of having committed various crimes under the laws of the City and State of New York, including but not limited to, Criminal Possession of Marijuana in the Fifth Degree and Unlawful Possession of Marijuana.

7. That at all times hereinafter mentioned, it was the intent of the defendants, and each of them, their servants, agents, employees and/or licensees, to have the plaintiffs arrested and restrained from their respective liberty.

8. That at all times hereinafter mentioned, on or about the 31ST day of January, 2012, the within named defendant police officers, individually and in their capacity as employees of the defendant THE CITY OF NEW YORK, arrested each of the plaintiffs, unlawfully detained and/or restrained each plaintiff against her respective will, restrained each plaintiff from her liberty, falsely imprisoning each of them for a period of time in a cell at the 73rd Precinct in Brooklyn.

9. That at all times hereinafter mentioned, on or about the 31ST day of January, 2012, the defendants, and each of them, police officers arrested the plaintiffs, unlawfully detained each of them, illegally, lewdly and unwanted pat down and search of plaintiff TIA ROKER; and restrained each plaintiff against her respective will; restraining each of them from their liberty, and falsely imprisoning each of them.

10. That at all times hereinafter mentioned, on or about the 31st day of January, 2012 the defendants and each of them, their respective servants, agents, employees and/or licensees, used unwanted touching upon the plaintiff TIA ROKER while she was in their care and custody.

11. That at all times hereinafter mentioned, the defendant police officers arrested and imprisoned the plaintiff upon the request, counsel, command and procurement of the defendants THE CITY OF NEW YORK by THE NEW YORK CITY POLICE DEPARTMENT, and each of them, their respective servants, agents, employees and/or licensees.

12. That at all times hereinafter mentioned, in doing all the acts and things aforesaid, defendants, and each of them, their respective servants, agents, employees and/or licensees, acted negligently, recklessly, carelessly, wilfully, deliberately, intentionally and maliciously.

13. That at all times hereinafter mentioned, the aforesaid arrest, detention and imprisonment and unwanted, lewd pat down, battery and search of the plaintiff TIA ROKER by the defendants herein, and each of them, their respective servants, agents, employees and/or licensees was illegal and without authority of law.

14. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

15. That at all times hereinafter mentioned, after having been arrested on the 31ST day of January, 2012, plaintiff TIA ROKER was held in custody and restrained of her liberty, freedom, rights, privileges and/or immunities secured by the Constitution of the United States and the Constitution of the State of New York.

16. That at all times hereinafter mentioned, after having been arrested on the 31st day of January, 2012, while plaintiff TIA ROKER was wrongfully detained by the defendants, and each of them, said defendants, their servants, agents, employees and/or licensees, subjected plaintiff to physical and mental abuse, assault, battery and the use of unwanted and lewd touching during the course of her custody and arrest.

17. Upon information and belief, and at all times hereinafter mentioned, after having been arrested on the 31ST day of January, 2012, plaintiff TIA ROKER was taken handcuffed, placed in a police car and transported to the 73rd Precinct, where she was held, finger printed and “booked” and subsequently placed in a jail cell for a period of time. Plaintiff’s name and pedigree were entered on the police record and court records, according to the police and court practice for the arrest and charging of criminals, and charges were entered that she had been arrested for being a criminal.

18. Prior to the arrest, illegal detainer and illegal imprisonment, plaintiff had enjoyed a good reputation in the County of Kings, particularly for honesty.

19. As a result of all the acts of the defendants, and each of them, their respective servants, agents, employees and/or licensees, plaintiff TIA ROKER was deprived of her freedom, liberty, rights, privileges and/or immunities secured by the Constitution of the United States and the Constitution of the State of New York; plaintiff was wrongfully detained and arrested and subjected to physical and mental abuse, including the unwanted, lewd touching and battery during the course of her custody and arrest by said defendants; plaintiff also suffered severe personal and permanent injuries, physical, mental and psychological pain and anguish of ridicule, embarrassment, humiliation and degradation; suffered from grave fear and intimidation for her safety and well-being by virtue of the negligent and/or intentional, deliberate and malicious acts of these defendants; suffered mental trauma and psychological injuries and physical manifestations thereof caused and exacerbated by same; sustained injury to her

character and reputation; was caused to be deprived of her usual vocation and avocation; was caused to incur medical expenses and suffered further damages.

20. That as a result of all the acts of the defendants, and each of them, their respective servants, agents, employees and/or licensees, plaintiff incurred special damages, including, but not limited to, lost earnings and medical expenses, and attorney's fees.

21. That as a result of the foregoing, plaintiff sustained damages in a substantial sum of money to be determined by a Court and jury, all in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this action.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF TAMMING DAVIS

22. That plaintiffs repeat, reiterate and reallege each and every allegation as contained in the First Cause of Action of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

23. That at all times hereinafter mentioned, on or about the 31ST day of January, 2012, the defendants, and each of them, police officers arrested the plaintiffs, unlawfully detained each of them, illegally, lewdly and unwanted pat down and search of plaintiff TIA ROKER; and restrained each plaintiff against her respective will; restraining each of them from their liberty, and falsely imprisoning each of them.

24. That at all times hereinafter mentioned, the defendant police officers arrested and imprisoned the plaintiff TAMMING DAVIS upon the request, counsel, command and procurement of the defendants THE CITY OF NEW YORK by THE NEW YORK CITY

POLICE DEPARTMENT, and each of them, their respective servants, agents, employees and/or licensees.

25. That at all times hereinafter mentioned, in doing all the acts and things aforesaid, defendants, and each of them, their respective servants, agents, employees and/or licensees, acted negligently, recklessly, carelessly, wilfully, deliberately, intentionally and maliciously.

26. That at all times hereinafter mentioned, the aforesaid arrest, detention and imprisonment, unwanted, lewd pat down search and battery of the plaintiff TAMMING DAVIS by the defendants herein, and each of them, their respective servants, agents, employees and/or licensees was illegal and without authority of law.

27. That at all times hereinafter mentioned, said arrest, confinement, battery and restraint of liberty was not otherwise privileged.

28. That at all times hereinafter mentioned, after having been arrested on the 31ST day of January, 2012, plaintiff TAMMING DAVIS was held in custody and restrained of her liberty, freedom, rights, privileges and/or immunities secured by the Constitution of the United States and the Constitution of the State of New York.

29. That at all times hereinafter mentioned, after having been arrested on the 31st day of January, 2012, while plaintiff TAMMING DAVIS was wrongfully detained by the defendants, and each of them, said defendants, their servants, agents, employees and/or licensees, subjected plaintiff to physical and mental abuse, assault and battery, and unwanted, lewd touching during the course of her custody and arrest.

30. Upon information and belief, and at all times hereinafter mentioned, after having been arrested on the 31ST day of January, 2012, plaintiff TAMMING DAVIS was taken handcuffed, placed in a police car and transported to the 73rd Precinct, where she was held, finger printed and "booked" and subsequently placed in a jail cell for a period of time. Plaintiff's name and pedigree were entered on the police record and court records, according to the police and Court practice for the arrest and charging of criminals, and charges were entered that she had been arrested for being a criminal.

31. Prior to the arrest, illegal detainer and illegal imprisonment, plaintiff TAMMING DAVIS had enjoyed a good reputation in the County of Kings, particularly for honesty.

32. As a result of all the acts of the defendants, and each of them, their respective servants, agents, employees and/or licensees, plaintiff TAMMING DAVIS was deprived of her freedom, liberty, rights, privileges and/or immunities secured by the Constitution of the United States and the Constitution of the State of New York; plaintiff was wrongfully detained and arrested and subjected to physical and mental abuse, including unwanted, lewd touching and battery during the course of her custody and arrest by said defendants; plaintiff also suffered severe personal and permanent injuries, physical, mental and psychological pain and anguish of ridicule, embarrassment, humiliation and degradation; suffered from grave fear and intimidation for her safety and well-being by virtue of the negligent and/or intentional, deliberate and malicious acts of these defendants; suffered mental trauma and psychological injuries and physical manifestations thereof caused and exacerbated by same; sustained injury to her

character and reputation; was caused to be deprived of her usual vocation and avocation; was caused to incur medical expenses and suffered further damages.

33. That as a result of all the acts of the defendants, and each of them, their respective servants, agents, employees and/or licensees, plaintiff incurred special damages, including, but not limited to, lost earnings and medical expenses, and attorney's fees.

34. That as a result of the foregoing, plaintiff sustained damages in a substantial sum of money to be determined by a Court and jury, all in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this action.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF BOTH PLAINTIFFS

35. That plaintiffs repeat, reiterate and reallege each and every allegation as contained in the First and Second Causes of Action of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

36. That at all times hereinafter, mentioned, in doing all acts and things aforesaid, defendants, and each of them, their servants, agents, employees and/or licensees, acted willfully and maliciously, and with the sole intent, desire and motive of injuring the each plaintiff.

37. That at all times hereinafter mentioned, the intent of the defendants, and each of them, their respective servants, agents, employees and/or licensees, to injure the each plaintiff was motivated and resulted in the aforesaid illegal arrest, illegal detention, assault, battery and illegal imprisonment of the plaintiffs, all without excuse or justification.

38. That at all times hereinafter mentioned, as a result of all the acts of the defendants, and each of them, their servants, agents, employees and/or licensees, each plaintiff was deprived of her respective freedom, liberty, rights, privileges and/or immunities secured by the Constitution of the United States and the Constitution of the State of New York; suffered physical, mental and psychological pain and anguish of ridicule, embarrassment, humiliation and degradation; suffered mental trauma and psychological injuries and physical manifestations thereof caused and exacerbated by same; sustained injury to each of her character and reputation; was caused to be deprived of their respective usual vocations and avocations; was caused to incur medical expenses and suffered further damages.

39. That as a result of the foregoing, each plaintiff sustained damages in a substantial sum of money to be determined by a Court and jury, all in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this action.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF BOTH PLAINTIFFS

40. That plaintiffs repeat, reiterate and reallege each and every allegation as contained in the First, Second and Third Causes of Action of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

41. That as a result of the negligence, recklessness and/or carelessness of the each of the defendants, their servants, agents, employees and/or licensees, the plaintiffs were each deprived of their respective freedom, liberty, rights, privileges and/or immunities secured by the Constitution of the United States and the Constitution of the State of New York; suffered

physical, mental and psychological pain and anguish of ridicule, embarrassment, humiliation and degradation; suffered mental trauma and psychological injuries and physical manifestations thereof caused and exacerbated by same; sustained injury to their characters and reputations; were caused to be deprived of their usual vocations and avocations; were caused to incur medical expenses and suffered further damages.

42. That as a result of the foregoing, each plaintiff sustained damages in a substantial sum of money to be determined by a Court and jury, all in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this action.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF BOTH PLAINTIFFS

43. That plaintiffs repeat, reiterate and reallege each and every allegation as contained in the First, Second, Third and Fourth Causes of Action of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

44. That at all times hereinafter mentioned, the defendants, and each of them, their servants, agents, employees and/or licensees, has deprived the plaintiffs of her respective freedom, liberty, rights, privileges and/or immunities secured by the Constitution of the United States and the Constitution of the State of New York.

45. That as a result of the willful and reckless disregard of such freedom, liberty rights, privileges and/or immunities of each plaintiff by the defendants, and each of them,

their respective servants, agents, employees and/or licensees, plaintiffs request that punitive damages be awarded in their favor in the amount of TWO MILLION (\$2,000,000.00) DOLLARS.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF BOTH PLAINTIFFS

46. That at all times hereinafter mentioned, plaintiffs repeat and reallege each and every allegation set forth in the First, Second, Third, Fourth and Fifth Causes of Action, with the same force and effect as though herein set forth at length.

47. That at all times hereinafter mentioned, the defendants, and each of them, their servants, agents, employees and/or licensees, have deprived each of the plaintiffs of her respective freedom, liberty, rights, privileges and/or immunities secured by the Constitution of the United States and the Constitution of the State of New York.

48. That as a result of willful and reckless disregard of such freedom, liberty, rights, privileges and/or immunities of the plaintiffs by the defendants, and each of them, their servants, agents, employees and/or licensees, plaintiffs request that they each be awarded attorney fees in their favor by the defendants, their servants, agents, employees and/or licensees, in an amount deemed reasonable and just by the Court.

WHEREFORE, the plaintiff demands judgment against the defendants as follows:

a) In the First Cause of Action in a substantial sum of money to be determined by a Court and jury, all in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this action;

b) In the Second Cause of Action in a substantial sum of money to be determined by a Court and jury, all in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this action;

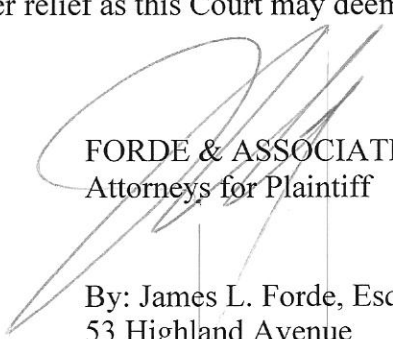
c) In the Third Cause of Action in a substantial sum of money to be determined by a Court and jury, all in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this action;

d) In the Fourth Cause of Action in a substantial sum of money to be determined by a Court and jury, all in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this action;

e) In the Fifth Cause of Action punitive damages in the amount of TWO MILLION (\$2,000,000.00) DOLLARS; and

f) In the Sixth Cause of Action attorney fees in an amount deemed reasonable and just by the Court, together with such other and further relief as this Court may deem just and proper..

Dated: New York, New York
January 31, 2012



FORDE & ASSOCIATES
Attorneys for Plaintiff

By: James L. Forde, Esq.
53 Highland Avenue
Eastchester, New York 10022
(914) 771-6399

ATTORNEY VERIFICATION

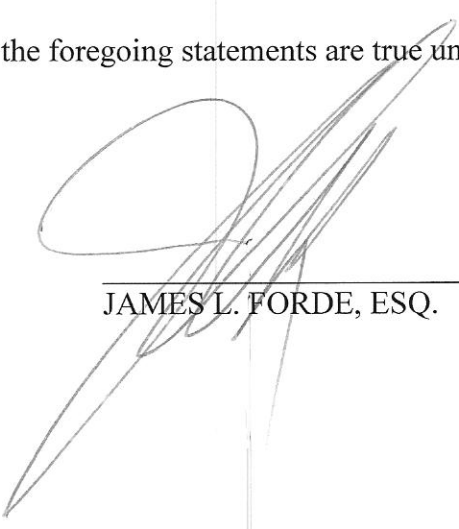
The undersigned, being an attorney duly admitted to practice in the Courts of the State of New York, affirms that he is the attorney of record or an attorney acting as trial counsel or of counsel to the attorney of record for the plaintiff(s) in the within action; that he has read the foregoing Verified Complaint, and knows the contents thereof, and that the same is true to his own knowledge, except as to those matters stated therein to be alleged on information and belief, and that as to those matters he believes it to be true.

The undersigned further states that the reason this affirmation is made by him and not the plaintiff(s) is that the plaintiff(s) reside(s) outside the county wherein the attorney for the plaintiff(s) has his office.

The grounds of the undersigned's belief and the source of his information as to all matters not stated upon information and belief are investigations made on behalf of the plaintiff(s) and the contents of plaintiff's file maintained herein.

The undersigned affirms that the foregoing statements are true under penalty of perjury pursuant to Rule 2106 of the CPLR.

Dated: Eastchester, New York
January 31, 2013



JAMES L. FORDE, ESQ.